

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-02
NIELSEN & BAINBRIDGE, LLC v.

OCEAN NETWORK EXPRESS PTE. LTD., ORIENT OVERSEAS CONTAINER
LINE LIMITED, OOCL (EUROPE) LIMITED, EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC#011982), EVERGREEN MARINE CORPORATION (TAIWAN) LTD.,
EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA, EVERGREEN
MARINE (HONG KONG) LTD., EVERGREEN MARINE (SINGAPORE) PTE. LTD., AND
YANG MING MARINE TRANSPORT CORPORATION

**COMPLAINANT’S SUPPLEMENTAL BRIEF IN RESPONSE TO ORDER ON
MOTIONS TO SEVER AND MOTIONS FOR A MORE DEFINITE STATEMENT**

Complainant NBG files this brief as requested by the Presiding Officer’s June 18, 2025
Order (the “Order”) on Motions to Sever and Motions for a More Definite Statement.

**I. Complainant’s Reparations Claims Were Validly Tolloed by Written Agreement with
Respondents.**

Section IV of the Order included *dicta* observing that “it appears” that reparations sought
in this action for any claims that accrued prior to December 31, 2021 might be unavailable in light
of the Shipping Act’s three-year statute of limitations on reparations. (Order at 7.) In fact, there
are no statute of limitations issues in this case, and the Presiding Officer’s assessment of the
severance issue should not be affected by any considerations relating to the statute of limitations.

As alleged in the Complaint (Dkt. 1), Complainant entered into tolling agreements with
each of the Respondents, expressly tolling any and all statutes of limitations, statutes of repose, or

other time-related defenses or limitations with respect to the claims alleged in this action.¹ (*See* Compl. ¶ 14 (“The claims brought herein are timely pursuant to tolling agreements agreed to by the parties.”).) Attached as Exhibit A is a chart that sets out the tolling agreements and subsequent amendments agreed between Complainant and each of the Respondents, together with the effective dates of the agreements and amendments. Written amendments to these tolling agreements extended the terms of each tolling agreement through the date Complainant filed its Verified Complaint in this action (i.e., December 31, 2024). Fully executed copies of these tolling agreements and each final amendment that extends the date of Complainant’s claims to the date of filing the Complaint are attached hereto as Exhibits B-E.

Consistent with those tolling agreements, no Respondent sought dismissal or raised any defense in this action based on any statute of limitations, and the statute of limitations should play no role in the Presiding Officer’s assessment of the pending motions. Tolling agreements are common practice and widely accepted and enforced in the context of Shipping Act claims before the FMC. *See, e.g.,* Verified Complaint, *VerTerra Ltd. v. D.B. Grp. Am. Ltd.*, FMC Dkt. No. 19-09, 2019 WL 6723865, at *1 (Nov. 22, 2019) (“While they were investigating and attempting to resolve this matter, the Complainants and Respondents entered into a tolling [a]greement with regard to all shipments between May of 2016 and December of 2018, extending the time to file this FMC action until November 22, 2019. . . . As such, there should be no statute of limitations issue as to all transactions between the parties”); Verified Complaint at ¶ 32, *Carlstar Group LLC v. UTi, U.S., Inc.*, FMC Dkt. No. 17-08 (Aug. 31, 2017) (“UTi, United States, Inc. and The Carlstar

¹ Tolling has been in effect with Ocean Network Express Pte. Ltd. (“ONE”) since October 31, 2023, with Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”) since November 6, 2023, with Yang Ming Marine Transport Corporation (“Yang Ming”) since November 8, 2023, and with the Evergreen Line Joint Service Agreement (FMC#011982) and its members (collectively, “Evergreen”) since November 13, 2023. The dates for each subsequent amendment for each Respondent are provided in the chart attached as Exhibit A.

Group LLC entered into a Tolling Agreement . . . to toll the running of time under any applicable statute of limitations, laches, or other defense of similar import the parties may have against each other”); Verified Amended Complaint, *Samsung Elecs. Am., Inc. v. HMM Co., Ltd.*, FMC Dkt. No. 24-23, 2025 WL 1036425, at *13 n.9 (Apr. 3, 2025) (“The Parties entered into a Tolling Agreement, effective as of January 1, 2023”); Verified Amended Complaint, *Samsung Elecs. Am., Inc. v. COSCO Shipping Co., Ltd.*, FMC Dkt. No. 24-16, 2025 WL 1282571, at *15 n.11 (Apr. 25, 2025) (“The Parties entered into a tolling agreement, effective as of January 1, 2023”); *see also* Respondent’s Motion to Dismiss the Complaint, *Samsung Elecs. Am., Inc. v. COSCO Shipping Co., Ltd.*, FMC Dkt. No. 24-16, 2024 WL 2154168, at *13 (May 9, 2024) (acknowledging the existence of a tolling agreement between the parties and arguing that the respondent’s willingness to enter into it showed that the respondent was not refusing to deal).²

Both Complainant and Respondents relied on and benefited from these tolling agreements, which enabled them to pursue amicable resolution prior to litigation, and Respondents are bound by the tolling they agreed to. Administrative Law Judge Guthridge’s discussion of this issue in denying a motion to dismiss in *Streak Products, Inc. v. UTi, United States, Inc.*, FMC Dkt. No. 13-04 (FMC ALJ Oct. 23, 2013), provides key guidance. There, as here, the respondent had not raised (and, thus, had waived) any statute of limitations defense, as Judge Guthridge explained:

Putting aside my surprise that an attorney who signed an agreement tolling the statute of limitations would then suggest that the tolling agreement does not apply, UTi’s contention that Streak should be required to file a motion to amend its Complaint to assert the tolling agreement misapprehends the procedure for asserting an affirmative defense. ***Streak’s Complaint does not and need not allege anything about the statute of limitations or that UTi signed a tolling agreement.*** If UTi does not plead the affirmative defense of statute of limitations in its answer, the defense may be waived and there is no time bar to Streak’s claims. ***If UTi does***

² Other administrative agencies routinely recognize the efficacy of tolling agreements. *See, e.g., SEC v. Fowler*, 6 F. 4th 255, 259 (2d Cir. 2021) (rejecting argument that a federal district court lacked subject matter jurisdiction over a Securities and Exchange Commission enforcement action that relied on a tolling agreement).

plead the statute of limitations defense, the burden is on UTi to establish its applicability and the date on which the statute cuts off Streak's claims.

Id. at 12 (internal citation omitted, emphasis added). Putting aside the issue of whether a statute of limitations must be pled as an affirmative defense, Judge Guthridge continued:

Assuming the statute of limitations bars some of Streak's claims and assuming UTi and its counsel signed the tolling agreements described above, it seems UTi would be hard-pressed to establish that claims accruing on or after December 20, 2009 (three years before Streak and UTi signed the first tolling agreement) are barred by the statute of limitations.

Id. (citing *Hunter-Boykin v. George Washington Univ.*, 132 F.3d 77, 82-84 (D.C. Cir. 1998)) (emphasis added). Here, all parties agreed to and relied on the tolling of Complainant's claims from late 2023 through the date the Verified Complaint was filed, and as noted above, no Respondent has sought dismissal or raised any defense based on any statute of limitations or time-based defense.³

³ Because Complainant's claims relating to service contract shortfalls accrued when the service contracts expired with service commitments unfulfilled, Complainant's claims are timely for the entire relevant service years. A Shipping Act claim accrues (and thereby starts the three-year statute of limitations clock for reparations), at the earliest, when a respondent commits an act that injures a complainant's business. *See* Order Granting in Part and Denying in Part Respondent's Motion for Summary Judgment, *Maher Terminals LLC v. Port Auth. of N.Y. & N.J.*, FMC Dkt. No. 08-03, 2013 WL 9808667, at *4 (FMC Jan. 31, 2013) ("Absent an exception, a claim accrues (and the statute of limitations begins to run) 'when a defendant commits an act that injures a plaintiff's business.' *Zenith Radio Corp. v. Hazeltine Research Inc.*, 401 U.S. 321, 338 (1971)."); Preliminary Ruling on Respondents' Motion to Dismiss, *Carlstar Group LLC v. UTi, U.S., Inc.*, FMC Dkt. No. 17-08, 2018 WL 1062398, at *19 (FMC Feb. 23, 2018); Initial Decision on Remand, *Santa Fe Discount Cruise Parking, Inc. v. Board of Trustees of the Galveston Wharves*, FMC Dkt. No. 14-06, 2018 WL 6078212 at *52 (FMC ALJ Nov. 16, 2018). The FMC also recognizes the "discovery rule", which delays the start of the statute of limitations to the point in time when the complainant knows or should know that it has a claim against a respondent. *See Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, FMC Dkt. No. 00-03, 2001 WL 1632551, at *10 (FMC Sep. 19, 2001). The service contracts at issue contained annual Minimum Quantity Commitments ("MQCs") that promised a commitment of a certain quantity of container-equivalent units over the full contract year. Accordingly, the extent of Respondents' non-performance under the service contracts was not known until the *end* of the service contracts' terms. Claims for nonperformance accordingly accrued as of the measurement date—*i.e.*, the end of the contract year. *See Santa Fe Discount Cruise Parking*, 2018 WL 6078212 at *52; *see also generally Integrity Glob. Sec. LLC v. Dell Mktg. L.P.*, 579 S.W.3d 577 (Tex. App.—Austin 2019) (holding that claims accrue on the due date of payments); *Water.io Ltd. v. Sealed Air Corp.*, No. 24CV029851-590, 2025 WL 554994 (N.C. Super. Ct. Feb. 19, 2025) (a claim for breach of contractual milestones accrues on the date of failure to meet the milestone).

II. Consolidation of the Claims Against the Respondents Is Appropriate

As noted in the Order, consistent with Rule 21 of the Federal Rules of Civil Procedure, the Presiding Officer has discretion to join or sever parties to a claim. Many judges, including the Commission's Administrative Law Judges, have exercised such discretion (by joining parties) in cases containing components arising from the same series of transactions or occurrences under Rule 20(a). *See Americans for Fair Pat. Use, LLC v. Sprint Nextel Corp.*, No. 2:10-CV-237-TJW, 2011 WL 98279, at *3 (E.D. Tex. Jan. 12, 2011) (holding joinder of all three defendants proper and denying one defendant's motion to sever since the plaintiff "identified many series of transactions or occurrences that connect[ed] [the] defendants in relevant and material ways" and the "overlapping product lines create[d] overlapping issues for trial and discovery in this case."); *Intermodal Motor Carriers Conf. v. Ocean Carrier Equip. Mgmt. Ass'n, Inc.*, FMC Dkt. No. 20-14 (FMC proceeding maintained against more than 10 respondents related to coordinated and parallel unjust and unreasonable activity). Further, "the Supreme Court has confirmed that the 'transaction or occurrence' standard ***does not require that the exact same body of evidence*** be used to prove all claims for joinder to be proper." *Kress Stores of Puerto Rico, Inc. v. Wal-Mart Puerto Rico, Inc.*, 121 F.4th 228, 246 (1st Cir. 2024) ("[I]t was reasonable for the district court to conclude that plaintiffs' claims against Costco and Wal-Mart related to the same occurrence: the break-out of the COVID-19 pandemic. . . .") (emphasis added). The reasonableness of the COVID-19 pandemic serving as the same occurrence in the retail industry (where Complainant supplied goods) is also applicable to the shipping industry, where many parties are interconnected or operate in common business.

Indeed, in the *Intermodal* litigation before the FMC, ONE recognized the viability and efficiency of consolidated proceedings when it affirmatively joined with the complainants and other respondents in joint motions for entry of stipulations and orders of confidentiality governing

discovery in that proceeding. *See Intermodal Motor Carriers Conf.*, FMC Dkt. No. 20-14, Dkt. Entries 39 & 46; *see also* Report and Order at 7-9, *Gov't of the Territory of Guam v. Sea-Land Serv., Inc.*, FMC Dkt. No. 89-26, Dkt. Entry 485 (FMC June 1, 1998) (describing complaint's allegations of unjust and unreasonable rates in the Guam trade against two different ocean common carriers); Complaint at 8, *Gen. Motors LLC v. Nippon Yusen Kabushiki Kaisha, Wallenius Wilhelmsen Logistics AS, Eukor Car Carriers Inc.*, FMC Dkt. No. 15-08, Dkt. 1 at 8 (Sept. 2, 2015) (alleging ocean common carriers conspired and overcharged in providing deep-sea vehicle transport services); Complaint at 3-5, *Century Metal Recycling Pvt. Ltd v. Dacon Logistics, LLC, dba Coda Forwarding, Great Am. Alliance Ins. Co., Avalon Risk Mgmt., Hapag Lloyd Am., Inc., and Mitsui OSK Lines*, FMC Dkt. No. 12-09 (Oct. 17, 2012) (alleging ocean common carriers Hapag-Lloyd and Mitsui refused to release containers due to non-payment by the VOCC, preventing delivery of its property and subjecting complainant to detention fees). The *Intermodal* proceeding involved allegedly unjust and unreasonable regulations and practices by multiple carriers that systematically denied freedom of chassis choice, analogous to the allegations in this proceeding of coordinated activity by multiple carriers to systematically deny shippers like Complainant the ability to book under regular service contract rates. *See* Complaint at ¶¶ 1-5, *Intermodal Motor Carriers Conf.*, FMC Dkt. No. 20-14, (Aug. 24, 2020).

In this proceeding, overlapping facts are abundant:

- (1) Respondents Evergreen and Yang Ming have already retained the same counsel and submitted a jointly-filed answer to the Complaint (Dkt. 16), demonstrating the efficiency of joint representation even though the two carriers are not alliance partners.
- (2) Complainant's reparations analysis will review data for containers shipped by NBG on the spot market to cover *overlapping shortfalls* by Respondents during similar timeframes on similar lanes. Assessing reparations may accordingly require apportionment of fault among Respondents, who will have an incentive to show, for example, that another Respondent's conduct was unreasonable in connection with a lane covered by both Respondents' service contracts. Such proof would be unwieldy if the reparations phase of this matter is fully severed into individual proceedings.

- (3) Complainant alleges that during the COVID-19 pandemic, all of the Respondents engaged in an unjust and unreasonable practice of failing to satisfy their respective contractual ocean freight service commitments to Complainant in favor of carrying cargo from other shippers paying higher rates.
- (4) Complainant alleges that Respondents ONE, OOCL, and Evergreen simultaneously imposed extracontractual charges to carry what little freight that they did agree to carry for Complainant.
- (5) All of Complainant's causes of action arise from industry-wide congestion and slowdowns affecting ports and entire regions where multiple Respondents have joint ships and operations, and may operate jointly in the event they are in ocean alliances or otherwise share common resources or infrastructure.

The Respondents are capable of consolidating their proceedings without any undue burden or prejudice. Any concerns regarding the ability to maintain confidential information or to otherwise protect the interest of the Respondents are assuaged by the recent examples of Commission precedent permitting multiple joined shipping carrier respondents.

III. Should the Presiding Officer Sever the Cases Against Respondents, Complainant Requests Coordination Among Cases for the Purpose of Discovery.

While Complainant believes that there is ample basis to rule against severance, if the Presiding Officer ultimately rules on any degree of severance, Complainant respectfully requests consideration of coordinating any severed cases for the purposes of discovery, particularly with regard to testimony and expert reports, and for calculation of reparations. Such a process will allow all parties to coordinate deadlines on common deliverables and to streamline discovery to maximize efficiency and meet the deadlines to be set by the Presiding Officer in this proceeding.

Complainant believes that coordination or consolidation would be the most efficient and least costly approach for all parties. Severance would not reduce any burden on Respondents, but instead would multiply the burdens on Complainant and the Commission. Efficiency and cost management is particularly important to Complainant because it is in bankruptcy, largely as a result of Respondents' conduct and pandemic-era supply chain disruptions, has no operating

business structure in operation, and will need to coordinate depositions of its former employees, who have moved on to new positions and responsibilities and should not be burdened with unnecessary multiplicative depositions.

In the event the Presiding Officer holds that the cases against Respondents should be severed, Complainant will note for the Presiding Officer that the existing ocean alliances among the Respondents are between (1) OOCL and Evergreen,⁴ and, (2) ONE and Yang Ming,⁵ respectively. Further, Respondent Evergreen and Respondent Yang Ming are both represented by the same counsel⁶ and also filed a joint answer to this case jointly responding to the allegations of the Complaint, only differing to accommodate the specificities in the allegations against each Respondent.⁷ These facts suggest that all of these parties (regardless of being in an ocean alliance) share enough in common to argue their cases together, with shared representation and pleadings, and should remain joined. Given the immense amount of discovery and data required to litigate these cases, Complainant requests the maximum level of consolidation the Presiding Officer deems fit in these cases.

IV. Conclusion

Considering the foregoing, Complainant maintains that this case should remain consolidated with all four Respondents. However, in the event the Presiding Officer finds that some of the cases ought to be severed, Complainant respectfully requests that all of the cases remain in coordination for the purpose of discovery and hearing, to minimize prejudice to the

⁴ See *CMA CGM, COSCO, Evergreen and OOCL Extend Alliance to 2032*, THE MARITIME EXECUTIVE (Feb. 27, 2024), <https://maritime-executive.com/article/cma-cgm-cosco-evergreen-and-oocl-extend-alliance-to-2032>.

⁵ See *New Premier Alliance Agreement for HMM, ONE, and Yang Ming Takes Effect*, THE MARITIME EXECUTIVE (Feb. 6, 2025), <https://maritime-executive.com/article/new-premier-alliance-agreement-for-hmm-one-and-yang-ming-takes-effect>.

⁶ See Notice of Appearance (Evergreen JSA, Taiwan, UK, Hong Kong, Singapore; Italia Marittima; and Yang Ming), (Dkt. 12).

⁷ See Answer to Complaint with Affirmative Defenses, (Dkt. 16).

bankrupt Complainant and its former employees, to reduce unnecessary costs for all parties (including Respondents), and to preserve the time and resources of the Presiding Officer and the Commission.

Complainant further requests that the Presiding Officer clarify that the Order's reference to statute of limitations was merely *dicta* and does not constitute a finding with respect to the timeliness of Complainant's claims, which were validly tolled and expressly preserved by written agreements with each Respondent.

Dated: July 7, 2025

Respectfully submitted,

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*Counsel for Complainant Nielsen & Bainbridge,
LLC*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon Respondents Ocean Network Express Pte. Ltd. (“ONE”), Orient Overseas Container Line Limited, OOCL (Europe) Limited (together with Orient Overseas Container Line Limited, “OOCL”), Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd. (“Evergreen Taiwan”), Evergreen Marine (UK) Limited (“Evergreen UK”), Italia Marittima SpA (“Italia”), Evergreen Marine (Hong Kong) Ltd. (“Evergreen Hong Kong”), and Evergreen Marine (Singapore) Pte. Ltd. (“Evergreen Singapore” and collectively with the Evergreen Line Joint Service Agreement, Evergreen Taiwan, Evergreen UK, Italia, and Evergreen Hong Kong, “Evergreen”), and Yang Ming Marine Transport Corporation by emailing a copy to their counsel of record listed below:

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*Counsel for Respondents Orient Overseas Container Line Limited and
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Dated: July 7, 2025

Mohini Priya Banerjee Rarrick
Mohini P.B. Rarrick
*Counsel For Complainant Nielsen &
Bainbridge, LLC.*

Exhibit A

Dkt. No. 25-02
Shipping Act Statute of Limitations Tolling Agreements

	Respondent ONE	Respondent OOCL	Respondent YM	Respondent Evergreen
Original tolling agreement	Effective date:10/31/2023 Extended to: 1/29/2024	Effective date:11/6/2023 Extended to: 2/4/2024	Effective date: 11/8/2023 Extended to: 2/6/2024	Effective date: 11/13/2023 Extended to: 2/11/2024
1st amendment extending tolling agreement	Effective date: 1/29/2024 Extended to: 4/24/2024	Effective date: 2/4/2024 Extended to: 5/4/2024	Effective date: 2/6/2024 Extended to: 5/6/2024	Effective date: 2/11/2024 Extended to: 5/11/2024
2nd amendment extending tolling agreement	Effective date: 4/24/2024 Extended to: 6/23/2024	Effective date: 5/4/2024 Extended to: 7/3/2024	Effective date: 5/6/2024 Extended to: 7/5/2024	Effective date: 5/11/2024 Extended to: 7/10/2024
3rd amendment extending tolling agreement	Effective date: 6/23/2024 Extended to: 8/7/2024	Effective date: 7/3/2024 Extended to: 8/27/2024	Effective date: 7/5/2024 Extended to: 8/29/2024	Effective date: 7/10/2024 Extended to: 8/29/2024
4th amendment extending tolling agreement	Effective date: 8/7/2024 Extended to: 9/24/2024	Effective date: 8/27/2024 Extended to: 10/11/2024	Effective date: 8/29/2024 Extended to: 10/15/2024	Effective date: 8/29/2024 Extended to: 10/3/2024
5th amendment extending tolling agreement	Effective date: 9/24/2024 Extended to: 10/24/2024	Effective date: 10/11/2024 Extended to: 12/10/2024	Effective date: 10/15/2024 Extended to: 12/16/2024	Effective date: 10/3/2024 Extended to: 12/2/2024
6th amendment extending tolling agreement	Effective date: 10/24/2024 Extended to: 12/13/2024	Effective date: 12/10/2024 Extended to: 12/31/2024	Effective: 12/16/2024 Extended to: 12/31/2024	Effective date: 12/2/2024 Extended to: 12/31/2024
7th amendment extending tolling agreement	Effective date: 12/13/2024 Extended to: 12/31/2024			

Exhibit B

TOLLING AGREEMENT

This Tolling Agreement (the “Agreement”) is entered into this 31st day of October, 2023 (the “Effective Date”), by and between NBG Home and (or on behalf of) its parents, subsidiaries, and affiliates, (collectively, the “Shipper”), on the one hand, and OCEAN NETWORK EXPRESS PTE. LTD. and (or on behalf of) its parents, subsidiaries, affiliates, successors, principals, and agents, including, but not limited to, OCEAN NETWORK EXPRESS (NORTH AMERICA) INC. (collectively, the “Carrier”) on the other. The Shipper and Carrier are referred to herein respectively as a “Party” and collectively as the “Parties” to this Agreement.

Recitals

WHEREAS, counsel for the Shipper has notified the Carrier of (i) legal issues that allegedly have arisen in the course of the Shipper’s dealings with the Carrier and (ii) the possibility of the Shipper filing a legal complaint against the Carrier before the Federal Maritime Commission (“FMC”) concerning such alleged legal issues;

WHEREAS, the Parties mutually desire to explore the possibility of resolving the alleged legal issues raised by the Shipper (each a “Claim” and collectively, the “Claims”) without the need for litigation or other legal action; and

WHEREAS, the Parties each and all agree that it is in their respective interests that they should not be compelled by any potentially or arguably applicable statute of limitations, statute of repose, or other time-related defenses to incur the time and expense necessary to litigate the Claims when such Claims might potentially be resolved through a mutually acceptable negotiated settlement or other resolution; and

NOW THEREFORE, in consideration of the promises and mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, and intending to be legally bound, each of the Parties agrees as follows:

TOLLING AGREEMENT

Terms and Conditions

1. Any and all statutes of limitations, statutes of repose, notice or other time-related defenses or limitations, whether statutory, contractual, or otherwise, and whether at law, in equity, or otherwise (including the doctrines of waiver, laches, acquiescence, or estoppel), in any jurisdiction, which are or may be applicable to any Claim or that may fix or limit the period within which a Claim may be brought, including without limitation 46 U.S. Code Section 41301(a), (collectively, the “Time-Based Defenses”) are hereby tolled for a period of 90 (ninety) days (herein referred to as the “Tolling Period”) after the Effective Date of this Agreement.

2. The Parties agree that the ninety-day time period that elapses during the Tolling Period shall not be included in the calculation of any Time-Based Defenses to the Claims, and accordingly each of the Parties and their respective parents, subsidiaries, affiliates, principals, agents, and related entities agrees not to assert, plead, or raise in any fashion any Time-Based Defenses to the Claims that rely in whole or in part on time that passed during the Tolling Period.

3. The running of any Time-Based Defenses which are or may be applicable to any Claims shall be deemed to re-commence after the ninety-day Tolling Period has elapsed. This Agreement shall not compromise in any way, nor be construed as a waiver of, any Time-Based Defenses that may exist or that have become established and/or accrued prior to the Effective Date, or which arise after the Tolling Period has elapsed, excluding the Tolling Period itself.

4. Nothing in this Agreement shall constitute an admission by any of the Parties as to the applicability, running, expiration, or non-expiration of any statute of limitation, statute of repose, or similar rule of law or equity prior to the Effective Date of this Agreement.

TOLLING AGREEMENT

5. Nothing in this Agreement shall be construed as an admission of any fact, liability, or conclusion of law or affect any Claim or defense to such Claim other than the Time-Based Defenses. Nothing in this Agreement shall be construed as an admission of any fault, liability, or wrongdoing by any Party. No affirmative rights are created or extended by this Agreement except to the extent expressly provided herein.

6. Nothing in this Agreement shall operate to revive any Claims that are already barred, in whole or in part, by any Time-Based Defenses, or the passage of time, as of the Effective Date of this Agreement. Nothing in this Agreement shall operate as a waiver of or prejudice any Party's right to assert that the statute of limitations or any other Time-Based Defenses have been tolled or have not yet run for reasons other than the execution of this Agreement.

7. Except as set forth herein, each of the Parties otherwise reserves all their respective rights, privileges, defenses, and contentions against one another, and they enter into this Agreement without prejudice to or waiver of those rights, privileges, defenses, and contentions.

8. This Agreement shall be governed by and construed and enforced in accordance with the internal laws of the State of New York without regard to principles of conflicts of laws requiring application of the laws of any other jurisdiction.

9. Each of the signatories to this Agreement represents and warrants that they have the authorization and power to bind the Party or Parties on whose behalf they are signing.

10. This Agreement may not be amended, modified, or supplemented, except in writing duly executed and delivered by each of the Parties to this Agreement.

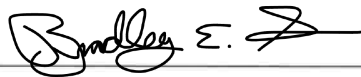
11. This Agreement constitutes the full and complete agreement of the Parties concerning the subject matter of the Agreement, and there are no covenants, conditions, or terms other than those expressly set forth in this Agreement.

TOLLING AGREEMENT

12. This Agreement may be signed in separate counterparts but all such counterparts taken together shall constitute a single agreement with the same effect as if all signatures were made on a single document. An electronic signature or scanned copy of an original signature shall be accepted as an original signature.

IN WITNESS WHEREOF, the Parties hereto have caused this Tolling Agreement to be executed and delivered by their duly authorized representatives as of the Effective Date.

FOR THE SHIPPER AS DEFINED HEREIN

By: 

Name: Bradley E. Scher

Title: Managing Member of Ocean Ridge Capital
Advisors, LLC as Plan Administrator

Date: November 3, 2023

FOR THE CARRIER AS DEFINED HEREIN

By: 

Name: Eric Chang

Title: Associate General Counsel

Date: October 31, 2023

SEVENTH AMENDMENT EXTENDING TOLLING AGREEMENT

Pursuant to Section 10 of the October 31, 2023 Tolling Agreement by and between NBG Home and (or on behalf of) its parents, subsidiaries, and affiliates, (collectively, the “Shipper”), on the one hand, and OCEAN NETWORK EXPRESS PTE. LTD. and (or on behalf of) its subsidiaries, affiliates, successors, principals, and agents, including, but not limited to, OCEAN NETWORK EXPRESS (NORTH AMERICA) Inc. (collectively, the “Carrier” and with the Shipper, the “Parties”) on the other, the Parties hereby jointly amend, effective October 13, 2024 (the “Effective Date”), the October 31, 2023 Tolling Agreement, the January 29, 2024 Amendment Extending Tolling Agreement (the “First Amendment”), the April 24, 2024 Second Amendment Extending Tolling (the “Second Amendment”), the June 23, 2024 Third Amendment Extending Tolling (the “Third Amendment”), the August 7, 2024 Fourth Amendment Extending Tolling (the “Fourth Amendment”), the September 24, 2024 Fifth Amendment Extending Tolling (the “Fifth Amendment”), and the October 24, 2024 Sixth Amendment Extending Tolling (the “Sixth” Amendment and with the First Amendment, Second Amendment, Third Amendment, Fourth Amendment, and Fifth Amendment the “Amendments”) as follows:

The term “Agreement” as defined in October 31, 2023 Tolling Agreement and the Amendments between the Parties is hereby amended to include within its definition the terms of this Seventh Amendment (as amended, the “Agreement”). Except as separately defined in this Seventh Amendment, all capitalized terms used in this Seventh Amendment shall have the meanings set forth in the Agreement.

The Tolling Period set forth in the Agreement is hereby extended for an additional unbroken period of 18 (eighteen) days; i.e., through December 31, 2024. All references in the Agreement to that original ninety-day time period or the ninety-day Tolling Period, all references in the

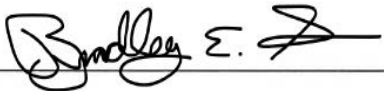
SEVENTH AMENDMENT EXTENDING TOLLING AGREEMENT

Amendments to their respective additional Tolling Periods are hereby amended to refer to the combined, unbroken 441-day Tolling Period provided by this Seventh Amendment.

Except as specifically provided herein, all other terms of the Agreement remain unchanged and effective. Each of the signatories to this Seventh Amendment represents and warrants that they have the authorization and power to bind the Party or Parties on whose behalf they are signing. This Seventh Amendment may be signed in separate counterparts but all such counterparts taken together shall constitute a single Seventh Amendment with the same effect as if all signatures were made on a single document. An electronic signature or scanned copy of an original signature shall be accepted as an original signature.

IN WITNESS WHEREOF, the Parties hereto have caused this Seventh Amendment Extending Tolling Agreement to be executed and delivered by their duly authorized as of the Effective Date.

FOR THE SHIPPER AS DEFINED HEREIN

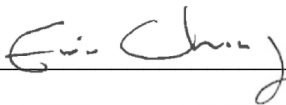
By:  _____

Name Bradley E. Scher

Title Managing Member of Ocean Ridge Capital
Advisors, LLC as Plan Administrator

Date: December 9, 2024

FOR THE CARRIER AS DEFINED HEREIN

By:  _____

Name: Eric Chang

Title: Associate General Counsel

Date: December 9, 2024

Exhibit C

TOLLING AGREEMENT

This Tolling Agreement (the “Agreement”) is entered into this 6th day of November, 2023 (the “Effective Date”), by and between Nielson Bainbridge LLC and (or on behalf of) its parents, subsidiaries, and affiliates, (collectively, the “Shipper”), on the one hand, and Orient Overseas Container Limited, OOCL (Europe) Limited, and (or on behalf of) their parents, subsidiaries, affiliates, successors, principals, and agents, (collectively, the “Carrier”) on the other. The Shipper and Carrier are referred to herein respectively as a “Party” and collectively as the “Parties” to this Agreement.

Recitals

WHEREAS, counsel for the Shipper has notified the Carrier of (i) legal issues that allegedly have arisen in the course of the Shipper’s dealings with the Carrier and (ii) the possibility of the Shipper filing a legal complaint against the Carrier before the Federal Maritime Commission (“FMC”) concerning such alleged legal issues;

WHEREAS, the Parties mutually desire to explore the possibility of resolving the alleged legal issues raised by the Shipper (each a “Claim” and collectively, the “Claims”) without the need for litigation or other legal action; and

WHEREAS, the Parties each and all agree that it is in their respective interests that they should not be compelled by any potentially or arguably applicable statute of limitations, statute of repose, or other time-related defenses to incur the time and expense necessary to litigate the Claims when such Claims might potentially be resolved through a mutually acceptable negotiated settlement or other resolution; and

NOW THEREFORE, in consideration of the promises and mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, and intending to be legally bound, each of the Parties agrees as follows:

TOLLING AGREEMENT

Terms and Conditions

1. Any and all statutes of limitations, statutes of repose, notice or other time-related defenses or limitations, whether statutory, contractual, or otherwise, and whether at law, in equity, or otherwise (including the doctrines of waiver, laches, acquiescence, or estoppel), in any jurisdiction, which are or may be applicable to any Claim or that may fix or limit the period within which a Claim may be brought, including without limitation 46 U.S. Code Section 41301(a), (collectively, the “Time-Based Defenses”) are hereby tolled for a period of 90 (ninety) days (herein referred to as the “Tolling Period”) after the Effective Date of this Agreement.

2. The Parties agree that the ninety-day time period that elapses during the Tolling Period shall not be included in the calculation of any Time-Based Defenses to the Claims, and accordingly each of the Parties and their respective parents, subsidiaries, affiliates, principals, agents, and related entities agrees not to assert, plead, or raise in any fashion any Time-Based Defenses to the Claims that rely in whole or in part on time that passed during the Tolling Period.

3. The running of any Time-Based Defenses which are or may be applicable to any Claims shall be deemed to re-commence after the ninety-day Tolling Period has elapsed. This Agreement shall not compromise in any way, nor be construed as a waiver of, any Time-Based Defenses that may exist or that have become established and/or accrued prior to the Effective Date, or which arise after the Tolling Period has elapsed, excluding the Tolling Period itself.

4. Nothing in this Agreement shall constitute an admission by any of the Parties as to the applicability, running, expiration, or non-expiration of any statute of limitation, statute of repose, or similar rule of law or equity prior to the Effective Date of this Agreement.

TOLLING AGREEMENT

5. Nothing in this Agreement shall be construed as an admission of any fact, liability, or conclusion of law or affect any Claim or defense to such Claim other than the Time-Based Defenses. Nothing in this Agreement shall be construed as an admission of any fault, liability, or wrongdoing by any Party. No affirmative rights are created or extended by this Agreement except to the extent expressly provided herein.

6. Nothing in this Agreement shall operate to revive any Claims that are already barred, in whole or in part, by any Time-Based Defenses, or the passage of time, as of the Effective Date of this Agreement. Nothing in this Agreement shall operate as a waiver of or prejudice any Party's right to assert that the statute of limitations or any other Time-Based Defenses have been tolled or have not yet run for reasons other than the execution of this Agreement.

7. Except as set forth herein, each of the Parties otherwise reserves all their respective rights, privileges, defenses, and contentions against one another, and they enter into this Agreement without prejudice to or waiver of those rights, privileges, defenses, and contentions.

8. This Agreement shall be governed by and construed and enforced in accordance with the internal laws of the State of New York without regard to principles of conflicts of laws requiring application of the laws of any other jurisdiction.

9. Each of the signatories to this Agreement represents and warrants that they have the authorization and power to bind the Party or Parties on whose behalf they are signing.

10. This Agreement may not be amended, modified, or supplemented, except in writing duly executed and delivered by each of the Parties to this Agreement.

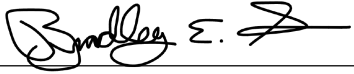
11. This Agreement constitutes the full and complete agreement of the Parties concerning the subject matter of the Agreement, and there are no covenants, conditions, or terms other than those expressly set forth in this Agreement.

TOLLING AGREEMENT

12. This Agreement may be signed in separate counterparts but all such counterparts taken together shall constitute a single agreement with the same effect as if all signatures were made on a single document. An electronic signature or scanned copy of an original signature shall be accepted as an original signature.

IN WITNESS WHEREOF, the Parties hereto have caused this Tolling Agreement to be executed and delivered by their duly authorized representatives as of the Effective Date.

FOR THE SHIPPER AS DEFINED HEREIN

By: 

Name: Bradley E. Scher

Title: Managing Member of Ocean Ridge Capital
Advisors, LLC as Plan Administrator

Date: November 6, 2023

FOR THE CARRIER AS DEFINED HEREIN

By: 

Name: Keith B. Letourneau

Title: Attorney-in-Fact for Orient Overseas
Container Limited, OOCL (Europe) Limited

Date: November 6, 2023

SIXTH AMENDMENT EXTENDING TOLLING AGREEMENT

Pursuant to Section 10 of the November 6, 2023 Tolling Agreement by and between Nielsen Bainbridge LLC and (or on behalf of) its parents, subsidiaries, and affiliates, (collectively, the “Shipper”), on the one hand, and Orient Overseas Container Limited, OOCL (Europe) Limited. and (or on behalf of) its parents subsidiaries, affiliates, successors, principals, and agents (collectively, the “Carrier” and with the Shipper, the “Parties”) on the other, the Parties hereby jointly amend, effective December 10, 2024 (the “Effective Date”), the November 6, 2023 Tolling Agreement, February 4, 2024 Amendment Extending Tolling Agreement (the “First Amendment”), May 4, 2024 Amendment Extending Tolling Agreement (the “Second Amendment”), the July 3, 2024 Amendment Extending Tolling Agreement (the “Third Amendment”), the August 27, 2024 Amendment Extending Tolling Agreement (the “Fourth Amendment”), and the October 11, 2024 Amendment Extending Tolling Agreement (the “Fifth Amendment” and with the First Amendment, Second Amendment, Third Amendment, and Fourth Amendment the “Amendments”) as follows:

The term “Agreement” as defined in November 6, 2023 Tolling Agreement and the Amendments between the Parties is hereby amended to include within its definition the terms of this Sixth Amendment (as amended, the “Agreement”). Except as separately defined in this Sixth Amendment, all capitalized terms used in this Sixth Amendment shall have the meanings set forth in the Agreement.

The Tolling Period set forth in the Agreement is hereby extended for an additional unbroken period of 21 (twenty-one) days; i.e., through December 31, 2024. All references in the Agreement to that original ninety-day time period or the ninety-day Tolling Period, or any additional Tolling Period specified in the Amendments are hereby amended to refer to the combined, unbroken 421-day Tolling Period provided by this Sixth Amendment.

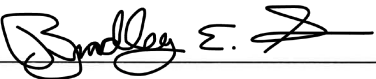
Except as specifically provided herein, all other terms of the Agreement and the Amendments remain unchanged and effective. Each of the signatories to this Sixth Amendment

SIXTH AMENDMENT EXTENDING TOLLING AGREEMENT

represents and warrants that they have the authorization and power to bind the Party or Parties on whose behalf they are signing. This Sixth Amendment may be signed in separate counterparts but all such counterparts taken together shall constitute a single Sixth Amendment with the same effect as if all signatures were made on a single document. An electronic signature or scanned copy of an original signature shall be accepted as an original signature.

IN WITNESS WHEREOF, the Parties hereto have caused this Sixth Amendment Extending Tolling Agreement to be executed and delivered by their duly authorized as of the Effective Date.

FOR THE SHIPPER AS DEFINED HEREIN

By: 

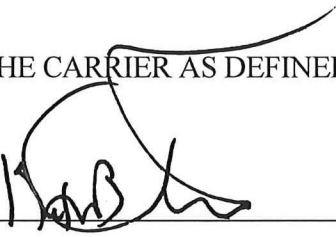
Name Bradley E. Scher

Title Managing Member of Ocean Ridge Capital
Advisors, LLC as Plan Administrator

December 2, 2024

Date: ~~November~~, 2024

FOR THE CARRIER AS DEFINED HEREIN

By: 

Name: Keith B. Letourneau

Title: Attorney-in-Fact for Orient Overseas
Container Limited, OOCL (Europe) Limited

Date: ~~November~~ ^{December 2}, 2024

Exhibit D

TOLLING AGREEMENT

This Tolling Agreement (the "Agreement") is entered into this 8th day of November, 2023 ~~day of October, 2023~~ ^{8CS} (the "Effective Date"), by and between NBG Home and (or on behalf of) its parents, subsidiaries, and affiliates, (collectively, the "Shipper"), on the one hand, and Yang Ming Marine Transport Corporation and (or on behalf of) its parents, subsidiaries, affiliates, successors, principals, and agents, including, but not limited to, Yang Ming (America) Corp. (collectively, the "Carrier") on the other. The Shipper and Carrier are referred to herein respectively as a "Party" and collectively as the "Parties" to this Agreement.

Recitals

WHEREAS, counsel for the Shipper has notified the Carrier of (i) legal issues that allegedly have arisen in the course of the Shipper's dealings with the Carrier and (ii) the possibility of the Shipper filing a legal complaint against the Carrier before the Federal Maritime Commission ("FMC") concerning such alleged legal issues;

WHEREAS, the Parties mutually desire to explore the possibility of resolving the alleged legal issues raised by the Shipper (each a "Claim" and collectively, the "Claims") without the need for litigation or other legal action; and

WHEREAS, the Parties each and all agree that it is in their respective interests that they should not be compelled by any potentially or arguably applicable statute of limitations, statute of repose, or other time-related defenses to incur the time and expense necessary to litigate the Claims when such Claims might potentially be resolved through a mutually acceptable negotiated settlement or other resolution; and

NOW THEREFORE, in consideration of the promises and mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, and intending to be legally bound, each of the Parties agrees as follows:

TOLLING AGREEMENT

Terms and Conditions

1. Any and all statutes of limitations, statutes of repose, notice or other time-related defenses or limitations, whether statutory, contractual, or otherwise, and whether at law, in equity, or otherwise (including the doctrines of waiver, laches, acquiescence, or estoppel), in any jurisdiction, which are or may be applicable to any Claim or that may fix or limit the period within which a Claim may be brought, including without limitation 46 U.S. Code Section 41301(a), (collectively, the "Time-Based Defenses") are hereby tolled for a period of 90 (ninety) days (herein referred to as the "Tolling Period") after the Effective Date of this Agreement.

2. The Parties agree that the ninety-day time period that elapses during the Tolling Period shall not be included in the calculation of any Time-Based Defenses to the Claims, and accordingly each of the Parties and their respective parents, subsidiaries, affiliates, principals, agents, and related entities agrees not to assert, plead, or raise in any fashion any Time-Based Defenses to the Claims that rely in whole or in part on time that passed during the Tolling Period.

3. The running of any Time-Based Defenses which are or may be applicable to any Claims shall be deemed to re-commence after the ninety-day Tolling Period has elapsed. This Agreement shall not compromise in any way, nor be construed as a waiver of, any Time-Based Defenses that may exist or that have become established and/or accrued prior to the Effective Date, or which arise after the Tolling Period has elapsed, excluding the Tolling Period itself.

4. Nothing in this Agreement shall constitute an admission by any of the Parties as to the applicability, running, expiration, or non-expiration of any statute of limitation, statute of repose, or similar rule of law or equity prior to the Effective Date of this Agreement.

Time-Based Defenses,

BES
11/8/2023

11/8/23

TOLLING AGREEMENT

5. Nothing in this Agreement shall be construed as an admission of any fact, liability, or conclusion of law or affect any Claim or defense to such Claim other than the Time-Based Defenses. Nothing in this Agreement shall be construed as an admission of any fault, liability, or wrongdoing by any Party. No affirmative rights are created or extended by this Agreement except to the extent expressly provided herein.

6. Nothing in this Agreement shall operate to revive any Claims that are already barred, in whole or in part, by any Time-Based Defenses, or the passage of time, as of the Effective Date of this Agreement. Nothing in this Agreement shall operate as a waiver of or prejudice any Party's right to assert that the statute of limitations or any other Time-Based Defenses have been tolled or have not yet run for reasons other than the execution of this Agreement.

7. Except as set forth herein, each of the Parties otherwise reserves all their respective rights, privileges, defenses, and contentions against one another, and they enter into this Agreement without prejudice to or waiver of those rights, privileges, defenses, and contentions.

8. This Agreement shall be governed by and construed and enforced in accordance with the ~~internal~~ laws of the State of New York without regard to principles of conflicts of laws requiring application of the laws of any other jurisdiction.

9. Each of the signatories to this Agreement represents and warrants that they have the authorization and power to bind the Party or Parties on whose behalf they are signing.

10. This Agreement may not be amended, modified, or supplemented, except in writing duly executed and delivered by each of the Parties to this Agreement.

11. This Agreement constitutes the full and complete agreement of the Parties concerning the subject matter of the Agreement, and there are no covenants, conditions, or terms other than those expressly set forth in this Agreement.

BS
11/8/2023

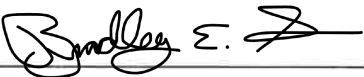
(no)
11/8/23

TOLLING AGREEMENT

12. This Agreement may be signed in separate counterparts but all such counterparts taken together shall constitute a single agreement with the same effect as if all signatures were made on a single document. An electronic signature or scanned copy of an original signature shall be accepted as an original signature.

IN WITNESS WHEREOF, the Parties hereto have caused this Tolling Agreement to be executed and delivered by their duly authorized representatives as of the Effective Date.

FOR THE SHIPPER AS DEFINED HEREIN

By: 

Name: Bradley E. Scher

Title: Managing Member of Ocean Ridge Capital
Advisors, LLC as Plan Administrator

Date: November 8, 2023

FOR THE CARRIER AS DEFINED HEREIN

By: 

Name:

Norman Choi

Title:

Corporate Counsel

Date:

November 8, 2023

SIXTH AMENDMENT EXTENDING TOLLING AGREEMENT

Pursuant to Section 10 of the November 8, 2023 Tolling Agreement (“the Tolling Agreement”) by and between NBG Home and (or on behalf of) its parents, subsidiaries, and affiliates, (collectively, the “Shipper”), on the one hand, and Yang Ming Marine Transport Corporation and (or on behalf of) its parents subsidiaries, affiliates, successors, principals, and agents, including, but not limited to, Yang Ming (America) Corp. (collectively, the “Carrier” and with the Shipper, the “Parties”) on the other, the Parties hereby jointly amend, effective December 16, 2024 (the “Effective Date”), the Tolling Agreement and the February 6, 2024 First Amendment Extending Tolling Agreement (the “First Amendment”), and the May 6, 2024 Second Amendment Extending Tolling Agreement (the “Second Amendment”), the July 5, 2024 Third Amendment Extending Tolling Agreement (the “Third Amendment”), the August 29, 2024 Fourth Amendment Extending Tolling Agreement (the “Fourth Amendment”), and the October 15, 2024 Fifth Amendment Extending Tolling Agreement (the “Fifth Amendment” and with the Fourth Amendment, Third Amendment, Second Amendment, and First Amendment, the “Amendments”) as follows:

The term “Agreement” as defined in the Tolling Agreement and the Amendments between the Parties is hereby amended to include within its definition the terms of this Sixth Amendment (as amended, the “Agreement”). Except as separately defined in this Sixth Amendment, all capitalized terms used in this Sixth Amendment shall have the meanings set forth in the Agreement.

The Tolling Period set forth in the Agreement is hereby extended for an additional unbroken period of 15 (fifteen) days, for a total, unbroken, 419-day Tolling Period, i.e., through December 31, 2024. All references in the Agreement to the original or previously amended time period, the original or previously amended Tolling Period, or any further amended Tolling Period



SIXTH AMENDMENT EXTENDING TOLLING AGREEMENT

by any Amendment are hereby amended to refer to the combined, unbroken 419-day Tolling Period provided by this Amendment.

Except as specifically provided herein, all other terms of the Agreement remain unchanged and effective. Each of the signatories to this Sixth Amendment represents and warrants that they have the authorization and power to bind the Party or Parties on whose behalf they are signing. This Sixth Amendment may be signed in separate counterparts but all such counterparts taken together shall constitute a single Amendment with the same effect as if all signatures were made on a single document. An electronic signature or scanned copy of an original signature shall be accepted as an original signature.

IN WITNESS WHEREOF, the Parties hereto have caused this Sixth Amendment Extending Tolling Agreement to be executed and delivered by their duly authorized as of the Effective Date.

FOR THE SHIPPER AS DEFINED HEREIN

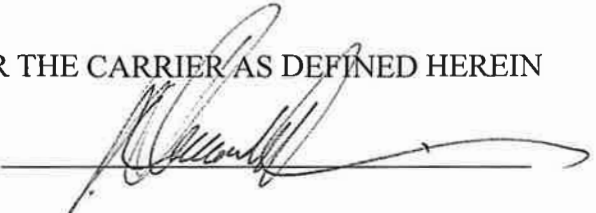
By: 

Name Bradley E. Scher

Managing Member of Ocean Ridge Capital
Title Advisors, LLC as Plan Administrator

Date: December 10, 2024

FOR THE CARRIER AS DEFINED HEREIN

By: 

Name: Norman Choi

Title: Corporate Counsel

Date: December 10, 2024

Exhibit E

TOLLING AGREEMENT

This Tolling Agreement (the "Agreement") is entered into this 13th day of November, 2023 (the "Effective Date"), by and between NBG Home and (or on behalf of) its parents, subsidiaries, and affiliates, (collectively, the "Shipper"), on the one hand, and Evergreen Line and (or on behalf of) its parents, subsidiaries, affiliates, successors, principals, and agents, including, but not limited to, Evergreen Shipping Agency (America) Corp. (collectively, the "Carrier") on the other. The Shipper and Carrier are referred to herein respectively as a "Party" and collectively as the "Parties" to this Agreement.

Recitals

WHEREAS, counsel for the Shipper has notified the Carrier of (i) legal issues that allegedly have arisen in the course of the Shipper's dealings with the Carrier and (ii) the possibility of the Shipper filing a legal complaint against the Carrier before the Federal Maritime Commission ("FMC") concerning such alleged legal issues;

WHEREAS, the Parties mutually desire to explore the possibility of resolving the alleged legal issues raised by the Shipper (each a "Claim" and collectively, the "Claims") without the need for litigation or other legal action; and

WHEREAS, the Parties each and all agree that it is in their respective interests that they should not be compelled by any potentially or arguably applicable statute of limitations, statute of repose, or other time-related defenses to incur the time and expense necessary to litigate the Claims when such Claims might potentially be resolved through a mutually acceptable negotiated settlement or other resolution; and

NOW THEREFORE, in consideration of the promises and mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, and intending to be legally bound, each of the Parties agrees as follows:

TOLLING AGREEMENT

Terms and Conditions

1. Any and all statutes of limitations, statutes of repose, notice or other time-related defenses or limitations, whether statutory, contractual, or otherwise, and whether at law, in equity, or otherwise (including the doctrines of waiver, laches, acquiescence, or estoppel), in any jurisdiction, which are or may be applicable to any Claim or that may fix or limit the period within which a Claim may be brought, including without limitation 46 U.S. Code Section 41301(a), (collectively, the "Time-Based Defenses") are hereby tolled for a period of 90 (ninety) days (herein referred to as the "Tolling Period") after the Effective Date of this Agreement.

2. The Parties agree that the ninety-day time period that elapses during the Tolling Period shall not be included in the calculation of any Time-Based Defenses to the Claims, and accordingly each of the Parties and their respective parents, subsidiaries, affiliates, principals, agents, and related entities agrees not to assert, plead, or raise in any fashion any Time-Based Defenses to the Claims that rely in whole or in part on time that passed during the Tolling Period.

3. The running of any Time-Based Defenses which are or may be applicable to any Claims shall be deemed to re-commence after the ninety-day Tolling Period has elapsed. This Agreement shall not compromise in any way, nor be construed as a waiver of, any Time-Based Defenses that may exist or that have become established and/or accrued prior to the Effective Date, or which arise after the Tolling Period has elapsed, excluding the Tolling Period itself.

4. Nothing in this Agreement shall constitute an admission by any of the Parties as to the applicability, running, expiration, or non-expiration of any statute of limitation, statute of repose, or similar rule of law or equity prior to the Effective Date of this Agreement.

TOLLING AGREEMENT

5. Nothing in this Agreement shall be construed as an admission of any fact, liability, or conclusion of law or affect any Claim or defense to such Claim other than the Time-Based Defenses. Nothing in this Agreement shall be construed as an admission of any fault, liability, or wrongdoing by any Party. No affirmative rights are created or extended by this Agreement except to the extent expressly provided herein.

6. Nothing in this Agreement shall operate to revive any Claims that are already barred, in whole or in part, by any Time-Based Defenses, or the passage of time, as of the Effective Date of this Agreement. Nothing in this Agreement shall operate as a waiver of or prejudice any Party's right to assert that the statute of limitations or any other Time-Based Defenses have been tolled or have not yet run for reasons other than the execution of this Agreement.

7. Except as set forth herein, each of the Parties otherwise reserves all their respective rights, privileges, defenses, and contentions against one another, and they enter into this Agreement without prejudice to or waiver of those rights, privileges, defenses, and contentions.

8. This Agreement shall be governed by and construed and enforced in accordance with the internal laws of the State of New York without regard to principles of conflicts of laws requiring application of the laws of any other jurisdiction.

9. Each of the signatories to this Agreement represents and warrants that they have the authorization and power to bind the Party or Parties on whose behalf they are signing.

10. This Agreement may not be amended, modified, or supplemented, except in writing duly executed and delivered by each of the Parties to this Agreement.

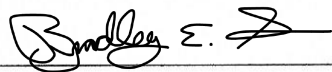
11. This Agreement constitutes the full and complete agreement of the Parties concerning the subject matter of the Agreement, and there are no covenants, conditions, or terms other than those expressly set forth in this Agreement.

TOLLING AGREEMENT

12. This Agreement may be signed in separate counterparts but all such counterparts taken together shall constitute a single agreement with the same effect as if all signatures were made on a single document. An electronic signature or scanned copy of an original signature shall be accepted as an original signature.

IN WITNESS WHEREOF, the Parties hereto have caused this Tolling Agreement to be executed and delivered by their duly authorized representatives as of the Effective Date.

FOR THE SHIPPER AS DEFINED HEREIN

By: 

Name: Bradley E. Scher

Title: Managing Member of Ocean Ridge Capital
Advisors, LLC as Plan Administrator

Date: 11/13/2023

FOR THE CARRIER AS DEFINED HEREIN

By: 

Name: Edward A. Keane

Title: Attorney for Carrier

Date: 11/13/2023

SIXTH AMENDMENT EXTENDING TOLLING AGREEMENT

Pursuant to Section 10 of the November 13, 2023 Tolling Agreement (the “Tolling Agreement”) by and between NBG Home and (or on behalf of) its parents, subsidiaries, and affiliates, (collectively, the “Shipper”), on the one hand, and Evergreen Line. and (or on behalf of) its parents subsidiaries, affiliates, successors, principals, and agents, including, but not limited to, Evergreen Shipping Agency (America) Corp. (collectively, the “Carrier” and with the Shipper, the “Parties”) on the other, the Parties hereby jointly amend, effective December 2, 2024 (the “Effective Date”), the Tolling Agreement, the February 11, 2024 First Amendment Extending the November 13, 2023 Tolling Agreement (the “First Amendment”), the May 11, 2024 Second Amendment Extending the November 13, 2023 Tolling Agreement (the “Second Amendment”), the July 10, 2024 Third Amendment Extending the November 13, 2023 Tolling Agreement (the “Third Amendment”), the August 29, 2024 Fourth Amendment Extending the November 13, 2023 Tolling Agreement (the “Fourth Amendment”), and the October 3, 2024 Fifth Amendment Extending the November 13, 2024 Tolling Agreement, (the “Fifth Amendment” and with the Fourth Amendment, Third Amendment, Second Amendment, and First Amendment the “Amendments”) as follows:

The term “Agreement” as defined in the Tolling Agreement and the Amendments between the Parties is hereby amended to include within its definition the terms of this Sixth Amendment (as amended, the “Agreement”). Except as separately defined in this Sixth Amendment, all capitalized terms used in this Sixth Amendment shall have the meanings set forth in the Agreement.

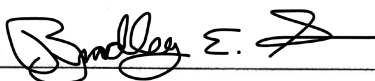
The Tolling Period set forth in the Agreement is hereby extended for an additional unbroken period of 29 (twenty-nine) days, for a total, unbroken 414-day Tolling Period, i.e., through December 31, 2024. All references in the Agreement to the original or previously amended time period, the original or previously amended Tolling Period or any additional tolling agreement

extension pursuant to the Amendments are hereby amended to refer to the combined, unbroken 414-day Tolling Period provided by this Amendment.

Except as specifically provided herein, all other terms of the Agreement remain unchanged and effective. Each of the signatories to this Sixth Amendment represents and warrants that they have the authorization and power to bind the Party or Parties on whose behalf they are signing. This Sixth Amendment may be signed in separate counterparts but all such counterparts taken together shall constitute a single Amendment with the same effect as if all signatures were made on a single document. An electronic signature or scanned copy of an original signature shall be accepted as an original signature.

IN WITNESS WHEREOF, the Parties hereto have caused this Sixth Amendment Extending Tolling Agreement to be executed and delivered by their duly authorized representative as of the Effective Date.

FOR THE SHIPPER AS DEFINED HEREIN

By:  _____

Name Bradley E. Scher

Title: Managing Member of Ocean Ridge Capital
Advisors, LLC as Plan Administrator

December 9, 2024
Date: ~~November~~, 2024

FOR THE CARRIER AS DEFINED HEREIN

By:  _____

Name: Edward A. Keane

Title: Attorney for Carrier

Date: November 27, 2024